

authorize proceedings against persons residing out of the state, unless the ground or cause of action, or the transaction on which the bill may be brought, took place within the state.

1841—(24)

Sec. 1.

Chancellors to prepare & adopt a system of rules.

§ 49. The chancellors of this state shall prepare and adopt a system of rules, for the regulation and government of proceedings in the courts of chancery, and from time to time amend the same: *Provided*, That they be not repugnant to, or inconsistent with, the laws of the land; *And provided*, They are approved of by the judges of the supreme court.

Ib. Sec. 2.

All testimony to be taken on interrogatories.

Ib. Sec. 3.

Register's bond to be filed with sec'y of state

§ 50. All testimony, in chancery, shall be taken on interrogatories and cross interrogatories, which interrogatories and cross interrogatories shall be filed with the register, and issue from his office with the commission.

§ 51. The registers in chancery, after having their official bonds recorded in the clerk's office of the county court, of the county where the court of chancery may be held, shall lodge the same in the office of secretary of state, on pain of being removed from office by the chancellor of the proper division.

Ib. Sec. 4.

Registers may be removed from office.

§ 52. The chancellors are hereby vested with power, each in their respective divisions, to remove from office any of their registers for misbehavior, malpractice, or any negligence in the duties of office, and to require of them new bonds, whenever they may deem it necessary.

Ib. Sec. 5.

Chancellor may order process of attachment.

§ 53. For disobedience to any order or decree of the chancellor, and on a sufficient showing by affidavit, the chancellor may order process of attachment to issue, to bring the party before him, either in vacation or term time, (as the case may be,) to show cause why he should not stand committed.

Ib. Sec. 6.

When injunction is dissolved, register to certify the same, with transcript of bond, to court of law.

a. Sec. § 76.

Ib. Sec. 7. Register may hear exceptions to bills, &c.

§ 54. Whenever an injunction is ordered to be dissolved, either with or without the six per cent. damage, and the injunction bond is ordered to have the force and effect of a judgment, it shall be the duty of the register, to certify the same, together with the transcript of the bond, to the court of law; to the end, that the plaintiff at law, may have execution on the injunction bond, as well as for the six per cent.^a damage, if any be awarded.

§ 55. Exceptions to bills, answers, and reports, shall be heard and determined by the register in the first instance, but subject to an appeal to the chancellor.

Ib. Sec. 8.

Issue at law, how tried.

§ 56. Whenever the chancellors shall direct a feigned issue to be tried by a jury at law, the issue shall be made upon a supposed wager, as heretofore, and shall be tried in the circuit court of the county in which the court of chancery may be held.

Ib. Sec. 9.

Title to property to vest by decree, without deed—but decree must be recorded as deeds are.

§ 57. In all cases where the right and title to property, whether real or personal, shall be decreed to either of the parties, the decree itself shall vest the right and title in the party to whom it is decreed, and a deed of conveyance shall not be required to complete the title: *Provided*, That all such decrees, vesting title to real estate, shall be recorded in the office of the clerk of the county court of the county in which such real estate shall lie, under the same laws of registration as are applicable to deeds and conveyances of lands.

Ib. Sec. 10.

Not to answer is to confess allegations of bill, except as to infants, &c.

Ib. Sec. 11.

Receiver not appointed in vacation.

§ 58. When service of a bill shall be made personally on the defendant, and the defendant shall refuse or fail to answer the allegations in the bill, the same shall be thereby admitted, and the chancellor shall give the same order or decree thereon, as if answer had been filed confessing the same, except in cases of infant defendants, *femes covert*, idiots, or lunatics, and cases of divorce.

§ 59. It shall not be lawful to appoint a receiver in vacation.